

Chapter 2

Legal and Ethical Aspects of Nursing

Lesson 2.1: Legal Aspects of Nursing

(Slide 1 of 2)

1. Summarize the structure and function of the legal system.
2. Compare and contrast nursing negligence and malpractice.
3. Discuss the legal relationship that exists between the nurse and the patient.
4. Explain the importance of maintaining standards of care.
5. Give examples of ways the nursing profession is regulated.
6. Give examples of legal issues in health care.

Lesson 2.1: Legal Aspects of Nursing

(Slide 2 of 2)

7. Discuss federal regulations of the Health Insurance Portability and Accountability Act of 1996 (HIPAA) privacy rule and its impact on the health care system.
8. Give examples of ways the licensed practical/vocational nurse can avoid being involved in a lawsuit.

Lesson 2.1: Legal Aspects of Nursing

(Slide 3 of 3)

- 12. Identify how values affect decision making.
- 13. Distinguish between ethical and unethical behavior.
- 14. Explain the meaning of a code of ethics.
- 15. Explain the nurse's role in reporting unethical behavior.
- 16. Give examples of ethical issues common in health care.

Overview of the Legal System

(Slide 1 of 2)

● Laws

- Prescribe how a person should act in society
- Sanction acceptable behavior and prohibit unacceptable behavior
- Provide protection for all members of the health care system

Overview of the Legal System

(Slide 2 of 2)

- Criminal law
- Civil law
- Two ways laws are established
 - Statutory law
 - Common law

Malpractice

- Refers to professional negligence
- Nursing responsibilities include actions taken as well as omitted
- Must contain four key elements
 - Duty
 - Breach
 - Harm
 - Proximate cause of harm

Legal Relationships

- Accountability

- Liability

- Legal relationship

- Nurse-patient relationship

- When the nurse assumes responsibility for the patient's care
 - Failure to provide care to the expected level of expertise gives rise to legal liability

- Advocate

- One who will defend or plead a cause or issue on behalf of another
 - The nurse accepts the role of advocate for the patient
 - A nurse advocate has a legal and ethical obligation to safeguard the patient's interests

Standards of Care

- Acts whose performance is required, permitted, or prohibited
- Give directions to the practicing nurse
- Defines the obligations of the nurse, including activities that are obligatory and those that are prohibited
- Failure to adhere to the standards gives rise to legal liability

Regulation of Practice

- Scope of nursing practice coupled with standards of care
 - Give direction to the practicing nurse
 - Follow the laws of individual states
 - Defines the obligations of the nurse including prohibited standards
- It is the nurse's responsibility to know the specific nurse practice act(s) in the state or states he/she practices in
- Institution has the right to establish policies and procedures for nursing within the nurse practice act

Legal Issues

- Statutory and common law can both play important roles defining the rights of others
- Patient's Bill of Rights
- Informed consent
- Confidentiality
- Social media
- Medical records
- Invasion of privacy
- Reporting abuse

HIPAA

- Health Insurance Portability and Accountability Act of 1996 (HIPAA)
 - Health care institution is obligated to uphold certain provisions to the patient
 - Right to have care without prejudice
 - Right to be treated with respect and dignity
 - Right to privacy and confidentiality
 - Right to personal safety
 - Right to complete information about one's own condition and treatment

How to Avoid a Lawsuit

- Provide compassionate, competent nursing care
- Nurse-patient relationship must be one based on trust and respect
- Use of open and honest communication
- Maintain and adhere to the standards of care and scope of practice
- Good Samaritan law provides immunity from lawsuits in certain circumstances
- Proper documentation — **"Care was not given if it was not charted"**

Insurance

- Professional liability insurance

- Two types of policies
 - Claims-made policy
 - Occurrence-basis policy

- Disciplinary defense insurance

- The disciplinary process

- Potential sanctions against a nursing license

Lesson 2.2: Ethical Aspects of Nursing

(Slide 1 of 2)

9. Differentiate between a legal duty and an ethical duty.
10. Explain advance directives.
11. Summarize how culture affects an individual's beliefs, morals, and values.
12. Identify how values affect decision making.
13. Distinguish between ethical and unethical behavior.

Lesson 2.2: Ethical Aspects of Nursing

(Slide 2 of 2)

- 14. Explain the meaning of a code of ethics.
- 15. Explain the nurse's role in reporting unethical behavior.
- 16. Give examples of ethical issues common in health care.

Ethical Aspects of Nursing

- Define *ethics*

- Advance directives

- Two types

- Living wills
 - Durable power of attorney

- Patient Self-Determination Act (PSDA) of 1991 requires all health care institutions to provide written information to patients regarding their right to make decisions about their health care

Development of Ethical Principles

- Define *values*
- Define *value clarification*
- Define *ethical dilemma*

Ethical Principles in Nursing Practice

- Most fundamental principle is respect for people
- Autonomy—freedom of personal choice
- Beneficence—acting for someone's good
- Nonmaleficence—means to do no harm
- Justice—concept of what is fair

Reporting Unethical Behavior

- Nurses have a duty to report behavior witnessed that does not meet the established standards
- Always follow the proper chain of command

Ethical Issues

- Change as society changes
- Practitioner-assisted suicide (PAS)
- Refusal to treat
- Do not resuscitate (DNR) orders